SIMON CHAPUKA
versus
THE STATE

HIGHCOURT OF ZIMBABWE
TAKUVA AND CHIKOWERO JJ
HARARE; 16 and 23 March 2026

Criminal Appeal

P P Dzapasi, for the appellant
K H Kunaka, for the respondent

CHIKOWERO J:

[1] This is an appeal against the judgment of the Regional Court sitting at Bindura convicting the appellant of two counts of rape as defined in s 65 of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] (the Criminal Law Code).

[2] As regards count 1 the lower court found that the appellant, 36 years old at the time of his trial in 2025 had, on a date unknown but in 2023 and at Luxarflow Farm in Concession, dragged TM, a then 8 year old girl into a bush where he raped her. The victim was proceeding to the grinding mill at the time that the offence was committed. She was a Grade 2 pupil.

[3] In respect of count 2 the lower court found that in April 2023 and at the same farm the appellant lured the complainant using sign language whereupon he raped her in a bush.

[4] The only issue at the trial was the identity of the perpetrator. It was not in dispute that the complainant was raped. The complainant gave detailed evidence in that regard. So did Shamiso Chingombe, the Guidance and Counselling Teacher to whom the victim made the complaint that the appellant was repeatedly raping her. Further, there was medical evidence in the form of a medical report. That exhibit, which was produced by consent, reflected healed full thickness tears of the complainant's hymen at 4,5,6,7 and 9 o'clock. The conclusion recorded by the nurse who examined the victim and compiled the medical report was that penetration was very likely

to have been effected. We point out that given the oral evidence of the complainant in light of the medical report the lower court had no difficulty in finding that the complainant was raped. We reiterate that the commission of the two counts of rape was not contested at the trial. The issue was whether it was the appellant who had committed those offences.

[5] Unhappy with the convictions, the appellant has raised three grounds of appeal. They read:

> "1. The trial court materially misdirected itself in convicting the appellant when the complainant's report of rape was not made voluntarily.
>
> 2. The trial court erred in placing reliance on a complaint not made at the earliest opportunity, thereby undermining its reliability.
>
> 3. The trial court further erred in convicting the appellant notwithstanding that the identity of the true perpetrator remains uncertain."

[6] The appellant is attacking factual findings made by the lower court. Those findings were made after an assessment of the credibility of the witnesses produced by the prosecution.

[7] Now, an appellant court does not interfere with factual findings made by a lower court unless those findings were grossly unreasonable in the sense that no reasonable tribunal applying its mind to the same facts would have arrived at the same conclusion; or that the court had taken leave of its senses, or, put otherwise the decision is so outrageous in its defiance of logic that no sensible person who had applied his mind to the question to be decided could have arrived at it: or that the decision was clearly wrong. See *Hama* v *National Railways of Zimbabwe* 1996(1) ZLR 664(S) at 670; *ZINWA* v *Mwoyowotsva* SC 463/13 at 16 and *Musimuke* v *State* SC 104/22.

[8] There is clear evidence on record that the victim made the complaint to Chingombe on 3 June 2025. This was after the latter had conducted a lesson on what sexual abuse entailed and the need for victims of sexual abuse to disclose. The complainant herself testified that she made the complaint to Chingombe as a result of the information received during the Guidance and Counselling sessions conducted by the latter. Chingombe corroborated the complainant in that regard. That the complainant was caught kissing another female pupil in the toilet was not what triggered the complainant. The kissing incident occurred about 4-5 days after the complaint had

already disclosed the rape incidents to Chingombe and when a police report had already been filed concerning the rape incidents. The first ground of appeal is without merit.

[9] A plausible explanation was given for the lengthy delay before a complaint of rape was made. The complainant was an unsophisticated little girl living in a farming compound. The appellant, a married man, lived in the same compound. The complainant was 8 years old when the appellant raped her for the first time. She had turned 10 years when the appellant sexually ravished her again. She said on both occasions the appellant threatened to "cut" her if she disclosed that which he had done to her. Fearing for her life, she remained silent. She also feared that her mother would assault her if the latter got wind of the commission of the crimes. On the issue of delay in reporting sexual assault, TSANGA J in *State* v *Musumhiri* 2014(2) ZLR 223(H) said at 226C:

> "Research done in Zimbabwe through WLSA on cultural inhibitors to reporting gender based violence and sexual assault indicates that silence cannot be equated to acquiescence. Fear of lack of support from the family, fear of the consequences that might befall the complainant which may range from being totally blamed for the event, being thrown out of the home to being forced to marry the rapist are some of what keeps many women from not reporting. See Alice Armstrong Culture and Choice: Lessons from Survivors of Gender Violence in Zimbabwe (WLSA, Harare, 1988) pp 126-128"

See also Garder v The State SC 26/24 at 21.

Nothing defies logic in the lower Court's factual finding that what delayed the making of the complaint was the young victims fear of lack of support from her mother (that she would be beaten and blamed for the rape incidents) as well as the threat to her life and limb (that the appellant would "cut" her) if she disclosed the rape incidents to anyone. Indeed, as pointed out by Ms Kunaka Chingombe testified that the complainant was still traumatised and fearful even as she was about to make the disclosure. She looked over her shoulder to check whether her young aunt was within earshot. She wanted to make sure that the young aunt did not hear what she was about to disclose to Chingombe lest that aunt relayed the information to the complainant's mother. Further, Chingombe testified that it was only after she had assured the complainant that the former would not carry the contents of the complaint to the complainant's mother that the complainant told her tale. Mr Dzapasi, correctly in our view, conceded that Chingombe was an independent witness. That witness had no reason to lie on the circumstances surrounding the

making of the complaint. We have already found that the 10 year old victim from the farm gave sound reasons for the delayed complaint. The lower court did not misdirect itself in finding that a plausible explanation was given for the delay in making the complaint.

[10] Nor is there merit in the third ground of appeal. In making the complaint to Chingombe the victim said the perpetrator was "Maxwell's father" otherwise known as "Baba Winnet." The appellant has a child called Maxwell. He is Maxwell's father. "Baba" is vernacular for "father." His wife is called Winnet. So, he is Winnet's husband. He was at the material time neighbour to the complainant. She had known him for a long time. The offences were committed in broad daylight by a person already known to the complainant. That person was "Maxwell's father" also known as "Baba Winnet." The person is the appellant, a neighbour to the complainant. Indeed, as eventually conceded by Mr Dzapasi at the hearing of the appeal, the complainant's evidence speaks to her recognising the perpetrator. There can be no merit in the contention that the appellant was a victim of mistaken identity.

[11] The appeal is without merit.

[12] The appeal be and is dismissed.

CHIKOWERO J:……

TAKUVA J:……I Agree

Takaindisa Law Practice, appellant's legal practitioners
The National Prosecuting Authority, respondent's legal practitioners